Dhirendra Kaushik And Others vs State Of U.P. Prin. Secy. Home Lko. And ... on 12 August, 2025

Author: Saurabh Lavania

Bench: Saurabh Lavania

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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH



?Neutral Citation No. - 2025:AHC-LKO:47124

Court No. - 11

Case :- APPLICATION U/S 482 No. - 4660 of 2023

Applicant :- Dhirendra Kaushik And Others

Opposite Party :- State Of U.P. Prin. Secy. Home Lko. And Another

Counsel for Applicant :- Vivek Kumar Divedi,Aishwarya Pratap Singh

Counsel for Opposite Party :- G.A.,Anupam Bajpai,Lovekush Pandey,Manpreet Singh,Pawan Ku



Hon'ble Saurabh Lavania,J.
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1. Heard learned counsel for the applicants, learned counsel for opposite party no.2, learned A.G.A. for the State and perused the material available on record.

2. This application has been filed for the following main relief(s):-

> "Wherefore it is respectfully prayed that this Hon'ble court may kindly be pleased to allow this petition and to quash the summoning order dated 15.11.2021 passed by the Additional Chief Judicial Magistrate, Court No. 22 Hardoi as well as further proceedings in the complaint case no. 3230/2018, titled as Beenu Sharma versus Dhirendra Kaushik and others under Section 498-A/323 IPC and section 3/4 of dowry prohibition act, District Hardoi, as contained in Annexure No. 1 be quashed and such other order as may be deemed just and proper may also be passed in the

interest of justice."

3. Indisputably, the dispute between the parties is matrimonial in nature and a complaint case no. 3230 of 2018 (Beenu Sharma Versus Dhirendra Kaushik and others), under section 498A, 323 of I.P.C. & 3/4 of D.P. Act, District Hardoi,was registered by opposite party no.2. The matter has been settled, as appears from Annexure -E to the report of Mediation & Conciliation Centre of this Court. The relevant portion of settlement between the parties reads as under:-

"6. The following settlement has been arrived at between the Parties hereto:-

A. That both the parties namely Dhirendra Kaushik (First Party/husband) and Beenu Sharma (Second Party/wife) have mutually agreed to dissolve their marriage and to live separately in future and for the purpose of dissolution of their marriage the parties have already filed a petition for divorce with mutual consent U/S 13-B Hindu Marriage Act, 1955 before Family Court, Ghaziabad bearing R. S. No. 1458 of 2024. Both the parties herein undertake to appear before the concerned Court on the date(s) fixed and would make their earnest endeavour to obtain a decree of divorce in terms of this settlement at the earliest.

B. That the First Party has agreed to pay to the Second Party and the Second Party has agreed to receive from the First Party a total sum of Rs.22,00,000/- (Twenty Two Lacs only) towards one time full and final settlement of all the claims against First Party including the claim for temporary/permanent alimony and expenses for maintenance & welfare of their daughter namely Anshika, who was born out of the wedlock of both the parties.

C. That both the parties have agreed that the aforesaid amount Rs.22,00,000/- (Twenty Two Lacs only) would be paid to the Second Party/wife in two installments. The first installment of Rs. 11,00,000/-(Eleven Lacs only) will be paid by the First Party/husband to the Second Party/wife on the date of entering into settlement agreement before the Mediation and Conciliation Centre, Allahabad High Court, Lucknow in the shape of Demand Drafts to be prepared in such a manner that an amount of Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife- Beenu Sharma @ Beenu Tiwari and Rs.5,50,000/-(Five Lacs Fifty Thousand ousand only) be paid to their daughter Anshika. The second installment Rs. 11,00,000/- (Rupees Eleven Lacs Fifty Thousand) will be paid by the First Party/husband to the Second Party/wife in the shape of Demand Drafts be prepared in such a manner that an amount of Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife-Beenu Sharma @ Beenu Tiwari and Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to their daughter Anshika at the time of second motion of the joint petition for divorce bearing R. of S. No. 1458 of 2024 D. That in accordance with clause 6 (C.), the First Party has handed over two Demand Drafts to the Second Party today ie 29.05.2024. The Second Party acknowledges the receipt of the same. The details of the Demand Drafts are

mentioned hereunder:

(1) D. D. No. 902635 dated 17.05.2024 amounting to Rs.5,50,000/-(Five Lacs Fifty Thousand only) drawn on State Bank of India in favour of Beenu Tiwari Canara Bank AC No. 110105274497.

(1) D. D. No. 902648 dated 20.05.2024 amount to Rs.5,50,000/-(Five Lacs Fifty Thousand only)drawn on State Bank of India in favour of Anshika D/O Beenu Tiwari.

E. That the parties have agreed that the custody of their daughter Anshika would remain with the Second Party and it would be the responsibility of the Second Party to bear all the expenses to be incurred towards bringing up of Anshika viz, education, daily needs, marriage etc..

F. That the First Party has agreed that he shall not claim the custody of Anshika in future.

G. That the parties have agreed to withdraw/not press/not to pursue the cases filed against each other and their family members. The details of the cases are mentioned hereunder:

1. FIR No. 356 of 2016 under Sections 323, 504, 506, 376, 511 of Indian Penal Code Government of U. P. Vs. Dhirendra Kaushik and Other) Police Station Sahibabad, District Ghaziabad.

2. FIR number 2131/2016 under sections 498, 323, 354, 354, 354 N, 504, 506 of the Indian Penal Code, Government of U. P. Vs. Dhirendra Kaushik and Others, Police Station- Sahibabad District Ghaziabad.

3. Case No. 2830 of 2017 in Case Crime No. 1563 of 2017 (Government of U. P. Vs. Yagyaval Sharma and Other) Police Station-Sahibabad, District-Ghaziabad.

4. FIR No. 2444/2017 (Government Of U. P. Vs. Deep Sharma and Others) Police Station Sahibabad, District-Ghaziabad.

5. Complaint number 13966 year 2017 Binu Sharma vs Vs. Dhirendra Kaushik and Others, Police Station-Sahibabad, District-Ghaziabad.

6. Case number 15965 year 2017 (Binu Sharma Vs. Deep Sharma and others) Police Station-Sahibabad District-Ghaziabad.

7. NCR Report No. 310 Year 2017 Section 323, 506 Indian Penal Code Government vs. Dhirendra Kaushik Police Station Sahibabad District Ghaziabad.

8. Complaint number 874 year 2018 (Binu vs. Dhirendra Kaushik and Others), U/S 125 Cr.P.C. Police Station Sahibabad District Ghaziabad.

9. Case number 384 year 2017 (Binu Sharma vs. Dhirendra Kaushik and Others) Police station Sahibabad District Ghaziabad.

10. Complaint No. 585 of 2019 (Binu Vs. Dhirendra Police Station- Sahibabad, District-Ghaziabad.

11. Case No. 4408 of 2017, (Binu v. Dhirendra Kaushik and others), Police Station-Sahibabad, District-Ghaziabad.

12. Case No. 4413 of 2017 (Binu Vs. Dhirendra Kaushik and others) Police Station-Sahibabad, District-Ghaziabad.

13. Case number 3694 of 2016, (Mrs. Binu Vs. Dhirendra Kaushik and Others) under Domestic Violence Act, Police Station-Sahibabad, District-Ghaziabad, whose revision number 3834 of 2022 is pending in the Honorable High Court, Allahabad.

14. FIR No. 1564 of 2017 under sections 323, 354, 354A of the Indian Penal Code vs. Binu Sharma, Police Station Sahibabad, District Ghaziabad.

15. Case No. 2217 2017 (Government of U. P. Vs. Binu Sharma), Police Station Sahibabad, District-Ghaziabad.

H. That the Second Party has agreed that she shall not have any objection if the Hon'ble Court decides the APPLICATION U/s 482 No.4660 of 2023 (Dhirendra Kaushik & Others Vs State of UP. & Another) in terms of this settlement agreement.

I. In addition to above mentioned case, if any other case(s) is pending between the parties, both the parties shall not have any objection if the case(s) is disposed of by the Hon'ble Court in terms of this Settlement Agreement.

J. That it is also agreed between the parties that henceforth no case will be instituted by them against each other or any of their respective family members in future in the form of criminal or civil proceedings in respect of any dispute arising out of their marriage or any matter incidental thereto.

K. That both the parties shall be bound by the terms and conditions of this Settlement in strict sense. In case of any default, the party committing the default shall be liable for playing fraud with the Court hence for contempt of the Court. The Second Party has agreed that in case she fails to cooperate in the divorce proceedings, she shall be bound to return to the First Party the entire money received by her from the First Party along with interest @ 9% p.a. with effect from the date of receipt of the amount/installment(s) and till the date of its actual payment to the First Party and the First Party will be at liberty to reopen his cases decided by theH on'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court/ Forum. The First Party has agreed that in case he fails to attend and cooperate in the divorce case, the amount received by the Second Party from the First Party shall not be returned by the Second Party and the

Second Party shall be at liberty to reopen her case(s) decided by the Hon'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court/Forum.

7. By Signing this Agreement the Parties hereto state that they have no further claims or demands against each other with respect to the matter involved in APPLICATION U/s 482 No.4660 of 2023 (Dhirendra Kaushik & Others Vs State of U.P. & Another) and all disputes and differences in this regard have been amicably settled by the Parties hereto through the process of Conciliation/Mediation"

4. It is stated that in view of the settlement arrived at between the parties, the present proceedings are liable to be quashed.

5. Considering the aforesaid as also the submissions made by learned Counsel for the parties as also the observations made by Apex Court in the case of State of Karnataka Vs. L. Muniswamy and Others, 1977 (2) SCC 699; State of Haryana Vs. Bhajan Lal and Others, 1992 Supp (1) SCC 335; Prashant Bharti Vs. State (NCT of Delhi), (2013) 9 SCC 293; Rajiv Thapar and Ors. Vs. Madan Lal Kapoor, (2013) 3 SCC 330; Ahmad Ali Quraishi and Ors. Vs. State of Uttar Pradesh and Ors. (2020) 13 SCC 435, according to which inherent power under Section 482 Cr.P.C. (akin to Section 528 BNSS, 2023) could be exercised to prevent abuse of process of any Court or otherwise to secure ends of justice, as also the observations made by Apex Court in the case of Ramgopal and others Vs. State of Madhya Pradesh, (2022) 14 SCC 531, Gian Singh Vs. State of Punjab [2012 10 SCC 303], Mohd. Ibrahim Vs. State of U.P., 2022 SCC Online ALL 106, Gold Quest International Ltd. Vs. State of Tamilnadu, 2014 (15) SCC 235, B.S. Joshi Vs. State of Haryana, 2003 (4) SCC 675, Jitendra Raghuvanshi Vs. Babita Raghuvanshi, 2013(4) SCC 58, Madhavarao Jiwajirao Scindia Vs. Sambhajirao Chandrojirao Angre, 1988 1 SCC 692, Nikhil Merchant Vs. C.B.I. and another, 2008(9) SCC 677, Manoj Sharma Vs. State and others, 2008(16) SCC 1, State of M.P. Vs. Laxmi Narayan and others, 2019(5) SCC 688, Narindra Singh and others Vs. State of Punjab and another, (2014) 6 SCC 466, Manoj Kumar and others Vs. State of U.P and others (2008) 8 SCC 781, Union Carbide Corporation and others Vs. Union of India and others (1991) 4 SCC 584, Manohar Lal Sharma Vs. Principal Secretary and others (2014) 2 SCC 532 and Supreme Court Bar Association Vs. Union of India (1998) 4 SCC 409, according to which, in given facts, based upon the settlements between the parties the criminal proceedings can be quashed,as also the nature of dispute/crime, this Court is of the view that the present application is liable to be allowed as chances of ultimate conviction are extremely bleak and hence no useful purpose would be served by allowing the criminal proceedings to continue. Accordingly, present application is allowed in view of the settlement and the observations made hereinabove. Consequently, the entire proceedings ofcomplaint case no. 3230 of 2018 (Supra), indicated in the prayer, quoted above, are hereby quashed in view of settlement.

6. Office/Registry is directed to send the copy of this order to the court concerned through email/fax for necessary compliance.

Order Date :- 12.8.2025 Jyoti/-